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Case Number: 25PSCV04628 Hearing Date: September 15, 2026 Dept: H

Crutchley v. General

Motors LLC, Case

No. 25PSCV04628

ORDER ON MOTION

FOR ATTORNEYS' FEES

Plaintiff

Andrew Robert Crutchley's Motion for Attorneys' Fees Pursuant to the Song-Beverly Act is GRANTED in the reduced amount of \$18,596.83.

Background

This is a lemon law case

where Plaintiff Andrew Robert Crutchley ("Plaintiff") brought suit against Defendant General Motors LLC ("Defendant") for breach of warranty and other causes of action under the Song Beverly Consumer Warranty Act, in connection with the purchase of a new 2022 Chevrolet Colorado.

On August 18, 2026, the

Court confirmed that a settlement agreement had been reached and that the only remaining issue is attorney fees.

An OSC Re: Dismissal (Settlement) is scheduled for October 22, 2026.

Legal Standard

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[T]he negotiation of a possible settlement does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process.” (Turley v. Turley (1967) 254 Cal.App.2d 169, 173.) In the context of an award of attorneys’ fees “the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys’ fee application, and in the court’s fee award.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) “[I]t is inappropriate and an abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In assessing attorney’s fees under the Song-Beverly Act, a trial court must make an “initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The

reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys’ fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate.” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550,

563–564.) It is the burden of the challenging party “to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id.)

A “court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

Plaintiff moves the Court, per the Song-Beverly Act and Civil Code section 1794, subdivision (d), for an award of attorney’s fees in the amount of \$24,798.33.

Defendant does not dispute that Plaintiff is entitled to attorney’s fees and costs as the prevailing party pursuant to the settlement agreement. To decide the award, the Court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Calculation of the Fee Award

Hourly Rate

Reasonable attorneys’ fees are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys’

experience and reputation, and other circumstances. (Id.)

Here, Plaintiff seeks to recover a total of \$23,468.50 in attorney's fees for work he claims was performed by three attorneys: Partner Bryan M. Geoulla, Founding Partner Ryan A. Youabian, and Associate Michael Josephson of Seven Law Group, APC. The billing rate for Youabian is \$495/hour, for Geoulla is \$450/hour, and for Josephson is \$350/hour. (Geoulla Decl., ¶ 13; Youabian Decl., ¶ 9; Josephson Decl., ¶ 8; Mot., at p. 13.) In support of the billing rates, the attorneys declared their rates accord with community standards, and cited the finding in *Goglin v. BMW of North America* (2016) 4 Cal.App.5th 462, 473, affirming that a \$575 hourly fee for lead counsel on a lemon law case was reasonable. The Court finds the attorneys' asserted rates to be reasonable given the current market rates for similar counsel, and the education, experience, and specialized qualification of these particular attorneys.

Billed Hours

Plaintiff's attorneys claim 55 hours of legal work, including 2.8 hours of anticipated work for the reply and hearing.

The Song-Beverly Act provides for the recovery of "costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer." (Civ. Code, § 1794, subd. (d).) A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of charges. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

The verified fee bill is prima facie evidence of the legal services necessarily incurred. (See Mot., Geoulla Decl., Ex. 2; see also *Hadley*, supra, 167 Cal.App.3d at 682.) Defendant challenges the following categories of work: (1) pre-engagement work, (2) excessive time for work using

templates and for reviewing, and (3) anticipated time on the instant motion. (See Opp., pp. 3–8.)

As to the pre-engagement work, the Court must limit the attorney's fee award to only compensate fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) Here, having reviewed the specific entries Defendant challenges, the Court finds that the challenged entries are appropriate entries expended on behalf of the client and in anticipation of commencing litigation, rather than routine business expenses that should be characterized as overhead.

As to Defendant's request to reduce the attorney's fee award for excessive billing associated with drafting filings based on templates, the Court has reviewed the disputed entries and finds that the hours are not excessive, with most of the challenged entries constituting less than 0.5 hours. That said, the Court finds that counsel impermissibly billed at partner rates for administrative/clerical time that is usually handled by support staff, like "reviewed email for Service of process received by One Legal for GM." (Geoulla Decl., Ex. 2.) The Court will reduce 2.1 hours, totaling \$945.00. The Court also finds that counsel excessively billed for the entry starting with "reviewed and analyzed" and impermissibly block billed for the entry starting with "Call with client" on March 20 and 21, 2026, and reduces each to 1 hour (i.e. reduces the award by 2.40 hours/\$1,080.00.) As to hours billed for tasks related to Plaintiff's deposition, the Court finds the requested hours to be excessive – requesting 3.7 hours for deposition prep and post-deposition debriefing of a deposition that took less than half an hour – and reduces 1.7 hours/\$841.50. Lastly, the Court finds the hours requested for PMK deposition prep to be grossly excessive. For deposition prep alone, Mr. Josephson billed over 14.5 hours for a deposition that took a little over 2 hours; revision and review of the final deposition materials and outline accounted for 4.3 hours of the 14.5 hours. (Geoulla Decl., Ex. 2.) In addition, the requested hours were solely for attorney work, because counsel was taking the deposition and did not have to prepare the deponent. Thus, the Court reduces 8.5 hours, or \$2,975.00, for PMK deposition prep (at associate rate).

Finally, as to the 2.8 hours (\$1,260.00) requested for anticipated time drafting a reply and preparing and appearing for the hearing on this motion, the Court will reduce this figure by 0.8 hours (\$360).

Multiplier

Plaintiff does not request a multiplier. (Mot., at p. 12.) Thus, this issue is moot.

Costs

Plaintiff seeks \$1,329.83 in costs and expenses. Defendant takes issue with the \$800.00 billed for PMK deposition costs and the \$45.83 billed for "Other." As to the PMK deposition costs, the Court does not find them unreasonable or unnecessary because while the Section 998 Offer had been issued prior to the deposition, Plaintiff had not accepted yet and it is reasonable that information from the deposition influenced or was a consideration in Plaintiff's decision to accept. And as to the \$45.83 billed for "Other," Plaintiff states that it is for "the court-technology, e-filing, and convenience component of the One Legal charges," which are necessary due to e-filing being mandated. (Reply, at p. 9.)

Conclusion

Accordingly, the motion for attorney's fees is GRANTED in the reduced amount of \$18,596.83 (i.e. \$17,267 for attorney's fees plus \$1,329.83 in costs).